

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF NEW YORK**

JEANNA KRATZERT and NEIL MOSHER,
*individually and on behalf of all others
similarly situated,*

Plaintiffs,

v.

TARGET CORPORATION,

Defendant.

Civ. Action No.: 1:25-cv-1171 (AMN/DJS)

CLASS ACTION COMPLAINT

JURY TRIAL DEMANDED

Plaintiffs Jeanna Kratzert and Neil Mosher, individually and on behalf of all others similarly situated, by their undersigned attorneys Katz Banks Kumin LLP, as and for their Complaint, allege as follows:

INTRODUCTION

1. Defendant Target Corporation (“Target”) is a retailer that employs thousands of workers across the United States in distribution centers, or warehouses, to support its online and in-person retail operations.

2. These warehouses are enormous industrial sites. In New York, Target operates two such warehouses in the towns of Wilton and Amsterdam, which are approximately 1.5 million and 1.8 million square feet, respectively.

3. Hourly employees of the warehouses are required to walk long distances—up to approximately half a mile—to and from their assigned departments, where they are required to clock in at the start of each shift and clock out at the end of each shift.

4. Though Target requires hourly employees to swipe their employee badges for security purposes at the entrance of the warehouse, Target refused to pay Plaintiffs Jeanna Kratzert,

Neil Mosher, and thousands of other hourly-paid warehouse workers for the time they spent walking to and from their assigned time clocks.

5. In so doing, Target failed to pay Plaintiffs for all of their work time at their promised wage rate, and failed to pay them the state minimum wage for all hours worked, in violation of the New York Labor Law (“NYLL”).¹

6. Target also failed to pay Plaintiffs for time spent walking in the warehouse that went beyond forty hours in a workweek at the overtime premium rate, in violation of the NYLL.

7. In this day and age, there is no technological barrier to paying Plaintiffs and other employees for such time. Target already tracks the times Plaintiffs and other employees enter and, in some cases, leave the building, so it can readily calculate the time Plaintiffs and other employees spend walking to and from their assigned time clocks inside the warehouse. For each employee who is not paid for walking time, that time can add up to approximately \$1,000 to \$2,000 per year.

8. Considering that there are approximately 1,200 employees working at the Wilton warehouse, and approximately 800 working at the Amsterdam warehouse, this unpaid time adds up to more than two million dollars annually. That amounts to a massive wealth transfer from Target’s New York warehouse workers—who generally earn between \$39,000 and \$57,000 a year—to Target, a corporation with a net worth estimated at over \$43 billion.

9. Jeanna Kratzert and Neil Mosher (“Plaintiffs”) bring this class action lawsuit against Target on behalf of themselves and other similarly situated hourly warehouse employees,

¹ For the avoidance of doubt, Plaintiffs do not bring claims under the Fair Labor Standards Act (29 U.S.C. §§ 201-219), which was limited by the Portal-to-Portal Act (29 U.S.C. §§ 251-262). But the New York Labor Law requires payment for the time at issue in this case. Courts in other states have held that similar state wage laws require employers to pay workers for pre- and post-shift work time. *See, e.g., In Re Amazon.Com Inc.*, 255 A.3d 191, 201 (Pa. 2021); *Friekin v. Apple, Inc.*, 457 P.3d 526, 532-33 (Cal. 2020); *Roberts v. State*, 512 P.3d 1007, 1015-16 (Ariz. 2022).

as Target failed to pay any of these workers for the time they spent walking inside the warehouse at the start and end of each shift.

THE PARTIES

10. Plaintiff Jeanna Kratzert is a resident of New York State who worked for Defendant at its Wilton, New York, warehouse—including as a packer and as a member of the inbound and outbound departments—from approximately April 2018 to November 2024.

11. Plaintiff Neil Mosher is a resident of New York State who currently works for Defendant at its Wilton, New York, warehouse as a warehouse worker in the shipping department. He previously worked for Defendant at its Wilton warehouse in the same role from approximately June 2002 to May 2005 before returning to work for Defendant in approximately June 2008.

12. Target Corporation is a Minnesota corporation with its principal place of business located at 1000 Nicollet Mall in Minneapolis, Minnesota. As such, it is a citizen of Minnesota for diversity purposes.

13. Target operates two warehouses in New York State: 129 North Road in Wilton, New York, and 1800 Route 5 South in Amsterdam, New York.

14. As of February 1, 2025, Target operated 107 retail stores in New York State. Target Corp., *2024 Annual Report Target Corporation*, at 21, Item 2, <https://corporate.target.com/getmedia/c23bca62-1790-47bd-ad0e-6971ace4f78d/2024-Annual-Report-Target-Corporation.pdf>.

15. At all times relevant to this action, Target was an “employer” of Plaintiffs and similarly situated warehouse employees within the meaning of the NYLL.

16. At all times relevant to this action, Plaintiffs and similarly situated warehouse employees were non-exempt “employees” of Defendant as defined by the NYLL.

17. At all times relevant to this action, Defendant “employed” Plaintiffs and similarly situated warehouse employees within the meaning of the NYLL.

JURISDICTION AND VENUE

18. The Court has jurisdiction over Plaintiffs’ claims pursuant to 28 U.S.C. § 1332 (diversity), as Plaintiffs and Defendant are citizens of different states (New York and Minnesota, respectively), and Plaintiffs assert claims on behalf of themselves and hundreds (if not thousands) of individuals, claims which collectively amount to more than \$75,000 in unpaid wages and liquidated damages, as well as attorneys’ fees (recoverable as a matter of right under the NYLL).

19. Venue is proper in this district pursuant to 28 U.S.C. § 1391(b)(2) because a substantial part of the events or omissions giving rise to Plaintiffs’ claims occurred in this district, as Plaintiffs Kratzert and Mosher worked throughout their employment at Target’s warehouse in Wilton, New York (Saratoga County). Both of the warehouses where class members worked are located within this district.

FACTUAL ALLEGATIONS

20. Target is a nationwide retailer selling “a wide assortment of general merchandise and food” both in stores and online. *See 2024 Annual Report Target Corporation* at 4.

21. Defendant maintains its retail operations by operating warehouses around the country. *See id.* at 6 (“Most merchandise is distributed to our stores through our network of warehouses”); *id.* at 21 (reporting that Target operates 66 total supply chain facilities in the US, which includes “warehouses, sortation centers, and other facilities with a total of 68.5 million square feet”).

22. Target operates two warehouses in New York: one in Wilton, New York, at 129 North Road, and one in Amsterdam, New York, at 1800 Route 5 South.

23. The Wilton warehouse is estimated to be over 1.5 million square feet. *See* Albany Business Review, *Largest Distribution Centers in the Albany Area* (Apr. 5, 2024), <https://www.bizjournals.com/albany/subscriber-only/2024/04/05/largest-distribution-centers-in-the-albany-area.html>.

24. The Amsterdam warehouse is estimated to be over 1.8 million square feet. *Id.*

25. At the warehouses, workers are responsible for, among other things, unpacking and moving inventory, sorting inventory for shipping to specific New York stores based on the stores' needs, and packing inventory for shipping.

26. Plaintiffs' work, and the work of other Target warehouse employees, is intense and physically demanding. Workers must be able to lift and carry merchandise weighing 35-60 pounds during their shifts. Warehouse employees regularly carry up to 2,000 cartons of merchandise daily.

27. Warehouse workers are also trained to operate powered equipment including but not limited to pallet riders, scissor lifts, and sit down & stand up forklifts, and work at heights of up to 40 feet.

28. Defendant employs individuals who, in the last seven years, have worked in the Target warehouses in New York State, including in the job titles "warehouse worker" and "warehouse associate," and have been paid hourly wages.

29. From approximately April 2018 until approximately November 29, 2024, Defendant employed Plaintiff Kratzert at its Wilton warehouse, as a warehouse worker in different departments, and paid her an hourly wage.

30. From approximately June 2008 to present, Defendant has employed Plaintiff Mosher at its Wilton warehouse as a warehouse worker and paid him an hourly wage.

31. At the beginning of Plaintiffs' and each hourly warehouse employee's shift, Defendant required them to swipe in at the entrance to the warehouse.

32. After passing a security checkpoint staffed by security guards, Defendant then required Plaintiffs and other hourly warehouse employees to walk long distances within the warehouse to their assigned work locations.

33. Defendant required Plaintiffs and other hourly warehouse employees to "clock in" for payroll purposes at time clocks located at or near their assigned work location.

34. Defendant also required Plaintiffs and other hourly warehouse employees to be at their assigned work locations for "start-up meetings" with their supervisors several minutes *prior* to the official start of their shift.

35. As a result, it was mandatory for Plaintiffs and other hourly warehouse employees to arrive at the warehouse before the start of the shift and walk long distances within the warehouse before their shift began.

36. In addition, Defendant encouraged Plaintiffs and other hourly warehouse employees to clock in for their shift up to ten minutes early in order to be set up and on-site at their start-up locations at the start of their shift. However, Defendant did not pay Plaintiffs or other hourly warehouse workers for this extra time, during which they were clocked in before the scheduled start of their shift. For example, if a shift started at 6:00 AM, workers were encouraged to clock in beginning at 5:50 AM. Yet Defendant only paid these workers for their time beginning at 6:00 AM.

37. If Plaintiffs and other hourly warehouse employees arrived at the entrance to the facility at the start of their shift, they were considered late for their shifts and penalized.

38. Plaintiff Kratzert estimates that her mandatory pre-shift walking time generally took approximately 8-10 minutes per day when she worked as a packer between April 2018 and February 2020.

39. Plaintiff Kratzert estimates that her pre-shift walking time was approximately the same (8-10 minutes per day) when she worked on the inbound team between October 2021 and April 2023, and approximately 3-4 minutes per day when she worked on the outbound team between March and September 2021.

40. Plaintiff Mosher estimates that his mandatory pre-shift walking time took and continues to take approximately 5-6 minutes per day.

41. Defendant did not pay Plaintiffs or other hourly warehouse employees for time spent walking long distances from the entrance of the warehouse to their assigned time clock before each shift.

42. At the end of each shift, Defendant required Plaintiffs and other hourly warehouse employees to “clock out” for payroll purposes at the time clock located closest to their assigned work location.

43. Defendant then required Plaintiffs and other hourly warehouse employees to walk back a long distance through the warehouse and pass back through the security checkpoint before leaving the warehouse.

44. Plaintiff Kratzert estimates that her mandatory post-shift walking time took approximately 8-10 minutes per day when she worked as a packer, and that it was approximately the same when she worked on the inbound team.

45. Plaintiff Kratzert also estimates that her mandatory post-shift walking time was 3-4 minutes per day when she worked on the outbound team.

46. Plaintiff Mosher estimates that his mandatory post-shift walking time took and continues to take approximately 5-6 minutes per day.

47. Defendant did not pay Plaintiffs or other hourly warehouse employees for this time spent walking from their assigned time clock to the entrance of the warehouse after each shift.

48. For example, in the pay period ending July 19, 2025, Mr. Mosher was paid for 34.38 hours at his regular pay rate of \$28.31. But he was not paid for approximately 20 to 24 minutes of mandatory walking time during that pay period, so he is owed wages for that mandatory walking time at his regular pay rate.

49. Defendants failed to provide accurate wage statements to Plaintiffs and other hourly warehouse employees, because those statements did not include the pre- and post-shift time they were required to be in the warehouse.

50. Plaintiff Kratzert would tell her supervisors that she was being required to spend time walking through the warehouse that she was not being paid for, but did not experience a change in policy.

51. When supervisors informed Plaintiff Kratzert that she did not have a right to be paid for her pre- and post-shift walking time under company policy, Plaintiff Kratzert did not know if she had legal recourse.

52. As a result of their inaccurate pay notices, Plaintiffs and other hourly warehouse employees were unable to ascertain how much time they had spent walking in the warehouse for which they were not paid, how much they should have been paid for that time, and accordingly, what portion of their wages Defendant had failed to pay.

53. Plaintiffs and other hourly warehouse employees are generally assigned to one of two shift schedules: three 12-hour shifts per week, or four 10-hour shifts per week.

54. Defendant periodically required Plaintiffs and other hourly warehouse employees to work overtime throughout the year.

55. For example, Plaintiff Mosher and other similarly situated hourly warehouse employees were required to work an additional 20 hours per week, each week, from approximately June 2024 to January 2025.

56. Defendant also regularly required Plaintiffs and other hourly warehouse employees to work overtime during Target's busy holiday and back-to-school shopping seasons.

57. Plaintiffs and other hourly warehouse employees were full-time employees who were often scheduled to work, and did work, 40 hours per week. As a result, during those weeks, the unpaid time that Defendant required them to spend walking to and from their assigned time clocks was time that was required to be compensated at the overtime premium rate.

58. Even where Plaintiffs otherwise worked more than 40 hours and were paid the overtime rate for such time, because Target did not pay them for mandatory walking time, Plaintiffs were not paid for all their time worked more than 40 hours at the required overtime pay rate.

59. For example, in the pay period ending December 22, 2018, Ms. Kratzert was paid for 14.1 hours of overtime at a rate of \$25.11 per hour. But she was not paid for the mandatory walking time during that pay period, so she is owed wages for that mandatory walking time at her overtime pay rate.

60. As another example, in the pay period ending August 2, 2025, Mr. Mosher was paid for 14.99 hours of overtime at a rate of \$43.96 per hour. But he was not paid for approximately 30 to 36 minutes of mandatory walking time during that pay period, so he is owed wages for that mandatory walking time at his overtime pay rate.

61. Plaintiffs and many other hourly warehouse workers at Target’s warehouses were scheduled for more than 40 hours per week regularly, particularly during Target’s busy holiday and back-to-school shopping seasons. Working such overtime hours was mandatory.

62. Plaintiffs and other hourly warehouse workers at Target’s warehouses have also been monitored by security staff at a security checkpoint to ensure that they are only carrying personal belongings into and out of the warehouse in clear bags.

63. When passing through the security checkpoint before beginning their walks to their assigned work locations and then clocking in, and after clocking out and walking toward the building exit, Plaintiffs and other hourly warehouse employees’ bags were subject to security screening.

64. At times, including prior to the COVID-19 pandemic, security has also conducted “sporadic bag checks,” during which every employee’s bag would be inspected. Such checks resulted in long lines, where Plaintiffs and other hourly warehouse employees would be required to wait for several minutes before exiting the warehouse.²

CLASS ACTION ALLEGATIONS ON BEHALF OF THE CLASS

65. Plaintiffs bring their NYLL claims, the First through Fourth Causes of Action, on behalf of themselves and all other similarly situated individuals as a class action pursuant to Federal Rules of Civil Procedure 23(a), (b)(1), and (b)(3). Plaintiffs assert claims on behalf of and seek to represent the following Class: “All hourly-paid warehouse employees in all job titles, including but not limited to ‘warehouse associates’ and ‘warehouse workers’ during all shifts, who worked for Defendant from January 10, 2019 through the date of final judgment in this matter.”

² Should discovery show that Plaintiffs and other hourly warehouse employees spent significant time waiting in security lines when entering and/or exiting the warehouse at other times during the relevant time period, Plaintiffs may amend this Complaint to supplement these allegations accordingly.

66. The start date of January 10, 2019 accounts for the past six years of the NYLL statute of limitations, plus an additional 228 days due to the Governor of New York's executive orders tolling New York statutes of limitations during the COVID-19 pandemic. *See, e.g., McLaughlin v. Snowlift, Inc.*, 214 A.D.3d 720, 721 (2023).

67. Excluded from the Class are the legal representatives, officers, directors, assigns, and successors of Target; any individual who at any time during the class period has had a controlling interest in Target; the Judge(s) to whom this case is assigned and any member of the Judges' immediate family; and all persons who submit timely and otherwise proper requests for exclusion from the Class.

68. Plaintiffs reserve the right to amend and refine the class definition above or add classes and/or subclasses as litigation progresses.

69. *Numerosity*: The Class is so numerous that joinder of all Class members is impracticable. Although the precise number of putative Class members is currently unknown, Plaintiffs believe that the Class includes at least 3,000 members.

70. Upon information and belief, the Wilton warehouse employs up to approximately 1,500 employees during peak seasons.

71. The Amsterdam warehouse employs approximately 800 employees at any one time. *See, e.g., Montgomery County Business Development Center, Target*, <https://montgomerycountyworks.com/trusted-brands/target/> (accessed Aug. 18, 2025).

72. Plaintiffs estimate that at least 400 employees are assigned to the busiest shift at the Wilton warehouse, while approximately 160-180 employees are assigned to the least busy shift. Across the four shifts, they estimate approximately 1,200 employees work at the Wilton warehouse at any given time.

73. Plaintiffs are currently unaware of the identities of all of the employees who would be members of the Class, but this information is readily ascertainable from Defendant's records. Defendant should therefore be required to provide Plaintiffs with a list – including last known addresses, telephone numbers, and email addresses if known – of all individuals who worked as hourly warehouse employees for Defendant from January 10, 2019, through the date this Complaint was filed.

74. *Commonality*: Common questions of law and fact exist as to all members of the Class and predominate over any questions solely affecting individual members, including but not limited to:

- a. What are and were the policies, practices, programs, procedures, and protocols of Defendant regarding the compensation of hourly warehouse employees;
- b. Whether Target maintained a policy of not paying hourly warehouse employees for time spent walking from the warehouse entrance to their assigned work locations, and from their assigned work locations to the exit of the warehouse;
- c. Whether Target required hourly warehouse employees to clock in and clock out at or near their assigned work location;
- d. Whether Target failed to pay hourly warehouse employees for their time spent walking from the warehouse entrance to their assigned work locations, and from their assigned work locations to the exit of the warehouse;
- e. Whether the hourly warehouse employees were paid promised wages for all hours worked as required by the NYLL;
- f. Whether the hourly warehouse employees were paid at least the minimum wage for all hours worked as required by the NYLL;
- g. Whether the hourly warehouse employees were paid at the overtime premium rate for all hours worked over 40 in a workweek; and
- h. The nature and extent of class-wide injury and the measure of damages for those injuries.

75. *Typicality*: Plaintiffs' claims are typical of the members of the Class because members of the proposed Class have all been subject to the same unlawful practices of Defendant, and their claims arise out of these same practices.

76. Plaintiffs and the other hourly warehouse employees have the same statutory rights under the NYLL and are all non-exempt employees within the meaning of the NYLL.

77. Plaintiffs and the other hourly warehouse employees suffered similar types of damages.

78. Plaintiffs' claims are typical of the claims of the Class because, among other things, Plaintiffs were hourly warehouse employees who worked for Defendant and suffered the same labor law violations as other warehouse employees.

79. Plaintiffs' interests are co-extensive with the interests of the Class members; they have no interest adverse to the Class members.

80. Defendant acted or refused to act on grounds generally applicable to the Class, therefore making final injunctive relief and declaratory relief appropriate to the Class as a whole.

81. *Adequacy*: Plaintiffs will fairly and adequately represent the interests of the Class members. Their interests do not conflict with the interests of the members of the Class they seek to represent.

82. Plaintiffs understand that, as class representatives, they assume responsibility to the Class to represent its interests fairly and adequately.

83. Plaintiffs have retained counsel experienced in prosecuting class actions and in employment matters. There is no reason why Plaintiffs and their counsel will not vigorously pursue this matter.

84. *Superiority*: A class action is superior to other available means for the fair and efficient adjudication of the claims at issue herein.

85. The damages suffered by each individual Class member may be limited. Damages of such magnitude are small given the burden and expense of individual prosecution of the litigation necessitated by Defendant's conduct.

86. Further, it would be difficult for members of the Class to effectively obtain individual redress for the wrongs done to them. If individual actions were to be brought by each member of the Class, the result would be a multiplicity of actions, creating hardships for members of the Class, the Court, and Defendant.

87. Individual litigation also creates the potential for inconsistent or contradictory judgments, and increases the delay and expense to all parties and the judicial system.

88. By contrast, the class action device presents far fewer management difficulties, and provides the benefits of single adjudication, economy of scale, and comprehensive supervision by a single court.

89. This case does not present individualized factual or legal issues that would render a class action difficult.

90. Plaintiffs intend to send notice to all members of the Class to the extent required by Fed. R. Civ. P. 23(c)(2). The names and addresses of the Class members are available from Defendant's records.

FIRST CAUSE OF ACTION
New York Labor Law Claims
As to Plaintiffs and the Class
(Unpaid Minimum Wages)

91. Plaintiffs reallege and incorporate by reference the foregoing allegations as if fully set forth herein.

92. Defendant willfully failed to pay Plaintiffs and other similarly situated hourly warehouse employees for pre- and post-shift time spent walking and waiting at security checkpoints within the warehouse, in violation of NYLL Article 19 (NYLL §§ 650, 652), NYLL Article 6 (NYLL § 193), and their implementing regulations.

93. Accordingly, Defendant willfully failed to pay Plaintiffs and other similarly situated warehouse employees the state minimum wage for all hours worked, in violation of NYLL § 652 (requiring payment of minimum wage for “each hour worked”).

94. While such pre- and post-shift time is not required to be paid under the Portal-to-Portal Act’s amendment to the federal Fair Labor Standards Act, New York did not adopt that amendment when it enacted the New York Labor Law in 1960—and has not adopted it since.

95. Indeed, under the implementing regulations of Article 19, “The minimum wage shall be paid for the time an employee is permitted to work, *or is required to be available for work at a place prescribed by the employer, and shall include time spent in traveling to the extent that such traveling is part of the duties of the employee.*” 12 NYCRR 142-2.1(b) (Miscellaneous Wage Order for Miscellaneous Industries and Occupations - Basic minimum hourly wage rate and allowances) (emphasis added). As such, time spent walking from a warehouse entrance to an assigned time clock at the beginning of a shift, and from an assigned time clock to a warehouse exit at the end of a shift, is part of the “hours worked” for wage workers in New York. And in a New York State DOL Opinion letter, the Department confirmed that the phrase “time spent in traveling to the extent that such traveling is part of the duties of the employee” in 12 NYCRR § 142-2.1 “applies to all employees, *regardless of the extensiveness of their travel*, and requires the payment of wages for *any travel* that is part of the duties of the employee.” NYSDOL Op. Ltr. RO-09-0170 (emphasis added).

96. As described above, Target required Plaintiffs and other hourly warehouse employees to arrive at the warehouse, be present in the warehouse, and to travel long distances in the warehouse prior to the start of their shift before clocking in at their assigned work locations. Accordingly, Plaintiffs and other hourly warehouse employees were required to be paid for this time under the New York Labor Law, but Defendant failed to pay them *at all* for this time worked.

97. In addition, Target has been on notice that it is required to pay such pre-shift and post-shift walking time based on rulings in several other states with wage and hour statutes similar to New York that also did not adopt the Portal-to-Portal Act.

98. Defendant's failure to pay the required minimum wages as set forth above was willful within the meaning of NYLL §§ 198 and 663.

99. Plaintiffs and the Class are entitled to their unpaid minimum wages mandated by the NYLL, plus an additional 100 percent as liquidated damages, as a consequence of Defendant's unlawful actions and omissions, in accordance with NYLL §§ 198 and 663.

100. Plaintiffs also seek, and are entitled to, attorneys' fees, costs, and interest.

SECOND CAUSE OF ACTION
New York Labor Law Claims
As to Plaintiffs and the Class
(Unpaid Overtime Wages)

101. Plaintiffs reallege and incorporate by reference the foregoing allegations as if fully set forth herein.

102. As Plaintiffs and other similarly situated hourly warehouse employees regularly worked 40 hours in a single work week, Defendant willfully failed to pay Plaintiffs and other similarly situated hourly warehouse employees overtime pay at a rate of at least one-and-a-half times their regular hourly rate for every hour they worked above 40 hours in a single work week, as required under NYLL § 652 and its accompanying regulations/wage orders.

103. When unpaid pre- and post-shift time spent walking and waiting at security checkpoints within the warehouse was part of a workweek in which Plaintiffs and other similarly situated hourly warehouse employees worked 40 or more hours in a workweek, Target was required to pay Plaintiffs and other similarly situated workers for this pre- and post-shift time at the overtime premium rate.

104. With respect to the overtime rate, New York's implementing overtime regulations make clear that overtime is subject to certain exemptions "of sections 7 and 13 of the Fair Labor Standards Act," but do not cite or otherwise reference the exemptions set out in the Portal-to-Portal Act—an amendment to the FLSA codified at 29 U.S.C. § 251 *et seq.*—at all. 12 NYCRR 142-2.2 (Miscellaneous Wage Order for Miscellaneous Industries and Occupations – Overtime rate).

105. Defendant's failure to pay the required overtime wages as set forth above was willful within the meaning of NYLL §§ 198 and 663.

106. Plaintiffs and the Class are entitled to their unpaid wages mandated by the NYLL, plus an additional 100 percent as liquidated damages, as a consequence of Defendant's unlawful actions and omissions, in accordance with NYLL §§ 198 and 663.

107. Plaintiffs also seek, and are entitled to, attorneys' fees, costs, and interest.

THIRD CAUSE OF ACTION
New York Labor Law Claims
As to Plaintiffs and the Class
(Unpaid Promised Wages)

108. Plaintiffs reallege and incorporate by reference the foregoing allegations as if fully set forth herein.

109. In failing to pay Plaintiffs and other similarly situated hourly warehouse workers for their pre- and post-shift time spent walking and waiting in security lines, Defendant willfully failed to pay Plaintiffs and other similarly situated hourly warehouse employees promised wages

for all hours worked, in violation of Article 6 of the Labor Law (NYLL §§ 193 and 198), which only permits deductions from wages for certain enumerated purposes, and such deductions as are authorized in writing and for the benefit of the employee.

110. Courts in New York have long recognized that the failure to pay promised wages at all constitutes wage theft, as a full deduction from the wages of an employee.

111. In addition, as recent amendments to Article 6 have reaffirmed, “There is no exception to liability under this section for the unauthorized failure to pay wages, benefits or wage supplements.” NYLL § 193(5) and 198(3).

112. Defendant’s failure to pay the required wages as set forth above was willful within the meaning of NYLL §§ 193 and 198.

113. Plaintiffs and the Class are entitled to their unpaid promised wages mandated by the NYLL, plus an additional 100 percent as liquidated damages, as a consequence of Defendant’s unlawful actions and omissions, in accordance with NYLL §§ 193 and 198.

114. Plaintiffs also seek, and are entitled to, attorneys’ fees, costs, and interest.

FOURTH CAUSE OF ACTION
New York Labor Law Claims
As to Plaintiffs and the Class
(Wage Statement Violations)

115. Plaintiffs reallege and reincorporate by reference the foregoing allegations as if fully set forth herein.

116. Defendant failed to provide Plaintiffs and other similarly situated hourly warehouse employees with an accurate wage statement with every payment of wages which provided all of the information required under NYLL § 195(3).

117. Because Defendant failed to comply with the statute’s requirement to provide wage statements that accurately reflect all time worked, the wage theft complained of here—Defendant’s

failure to pay for all pre- and post-shift time spent walking and waiting in security lines—was not prevented and was allowed to persist.

118. Because the wage theft was not prevented, Plaintiffs and similarly situated hourly warehouse employees were denied the opportunity to spend or invest their legally-owed wages.

119. Because Defendant failed to comply with the statute's requirements, Plaintiffs and the Class were delayed in learning about their legal right to be paid for all time worked and unable to advocate for their proper wages, and were therefore delayed in acting on their legal right to recover their stolen wages. In addition, at least some wage theft claims have been extinguished by the statute of limitations.

120. For Defendant's violation of NYLL § 195(3), Plaintiffs and others similarly situated are entitled to \$250 for each day of work in which this violation continued to occur, in an amount not to exceed \$5,000, pursuant to NYLL § 198(1-d).

121. Plaintiffs also seek, and are entitled to, attorneys' fees, costs, and interest.

DEMAND FOR JURY TRIAL

Pursuant to Federal Rule of Civil Procedure 38, Plaintiffs, on behalf of themselves and the Class, demand a trial by jury as to all issues so triable.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs, on behalf of themselves and all others similarly situated, pray for relief as follows:

- (a) Determining that this action may proceed as a class action under Fed. R. Civ. P. 23(b)(3);
- (b) Designating Plaintiffs as representatives for the Class and designating Plaintiffs' counsel as counsel for the Class;
- (c) Declaring that Defendant committed violations of the NYLL;

- (d) Permanently enjoining Defendant from further violations of the NYLL;
- (e) Awarding damages to Plaintiffs and the Class as provided by the NYLL;
- (f) Awarding reasonable attorneys' fees and costs as provided by law; and
- (g) Granting further relief, in law or equity, as this Court may deem appropriate and just, including all relief authorized by the NYLL.

DATED: August 26, 2025
New York, New York

KATZ BANKS KUMIN LLP



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CIVIL COVER SHEET

P.25-cv-171

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS

Jeanna Kratzert and Neil Mosher

(b) County of Residence of First Listed Plaintiff Saratoga
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys (Firm Name, Address, and Telephone Number)

Katz Banks Kumin LLP, 646-759-4501
111 Broadway Suite 1403, New York, NY 10006

DEFENDANTS

Target Corporation

County of Residence of First Listed Defendant Hennepin (Minnesota)
(IN U.S. PLAINTIFF CASES ONLY)NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF
THE TRACT OF LAND INVOLVED.

Attorneys (If Known)

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff ☐ 3 Federal Question (U.S. Government Not a Party)
- ☐ 2 U.S. Government Defendant ☒ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | PTF | DEF | | PTF | DEF |
|---|---------------------------------------|----------------------------|---|----------------------------|---------------------------------------|
| Citizen of This State | ☒ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☒ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

Click here for: [Nature of Suit Code Descriptions.](#)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Medical Malpractice PERSONAL INJURY ☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☒ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 465 Other Immigration Actions	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 835 Patent - Abbreviated New Drug Application ☐ 840 Trademark ☐ 880 Defend Trade Secrets Act of 2016 SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 375 False Claims Act ☐ 376 Qui Tam (31 USC 3729(a)) ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit (15 USC 1681 or 1692) ☐ 485 Telephone Consumer Protection Act ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☐ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education PRISONER PETITIONS Habeas Corpus: ☐ 463 Alien Detainee ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty Other: ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement			

V. ORIGIN (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding ☐ 2 Removed from State Court ☐ 3 Remanded from Appellate Court ☐ 4 Reinstated or Reopened ☐ 5 Transferred from Another District (specify) ☐ 6 Multidistrict Litigation - Transfer ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
28 U.S.C. § 1332

Brief description of cause:

Claims for unpaid wages and other damages under the New York Labor Law

VII. REQUESTED IN COMPLAINT:

☒ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P.

DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE

DOCKET NUMBER

DATE

SIGNATURE OF ATTORNEY OF RECORD

s/ Hugh Baran

FOR OFFICE USE ONLY

RECEIPT # AMOUNT \$405 APPLYING IFP JUDGE AMN MAG. JUDGE DJS

ANYNDC-7263957

INSTRUCTIONS FOR ATTORNEYS COMPLETING CIVIL COVER SHEET FORM JS 44

Authority For Civil Cover Sheet

The JS 44 civil cover sheet and the information contained herein neither replaces nor supplements the filings and service of pleading or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. Consequently, a civil cover sheet is submitted to the Clerk of Court for each civil complaint filed. The attorney filing a case should complete the form as follows:

- I.(a) Plaintiffs-Defendants.** Enter names (last, first, middle initial) of plaintiff and defendant. If the plaintiff or defendant is a government agency, use only the full name or standard abbreviations. If the plaintiff or defendant is an official within a government agency, identify first the agency and then the official, giving both name and title.
 - (b) County of Residence.** For each civil case filed, except U.S. plaintiff cases, enter the name of the county where the first listed plaintiff resides at the time of filing. In U.S. plaintiff cases, enter the name of the county in which the first listed defendant resides at the time of filing. (NOTE: In land condemnation cases, the county of residence of the "defendant" is the location of the tract of land involved.)
 - (c) Attorneys.** Enter the firm name, address, telephone number, and attorney of record. If there are several attorneys, list them on an attachment, noting in this section "(see attachment)".
- II. Jurisdiction.** The basis of jurisdiction is set forth under Rule 8(a), F.R.Cv.P., which requires that jurisdictions be shown in pleadings. Place an "X" in one of the boxes. If there is more than one basis of jurisdiction, precedence is given in the order shown below.
- United States plaintiff. (1) Jurisdiction based on 28 U.S.C. 1345 and 1348. Suits by agencies and officers of the United States are included here. United States defendant. (2) When the plaintiff is suing the United States, its officers or agencies, place an "X" in this box.
- Federal question. (3) This refers to suits under 28 U.S.C. 1331, where jurisdiction arises under the Constitution of the United States, an amendment to the Constitution, an act of Congress or a treaty of the United States. In cases where the U.S. is a party, the U.S. plaintiff or defendant code takes precedence, and box 1 or 2 should be marked.
- Diversity of citizenship. (4) This refers to suits under 28 U.S.C. 1332, where parties are citizens of different states. When Box 4 is checked, the citizenship of the different parties must be checked. (See Section III below; **NOTE: federal question actions take precedence over diversity cases.**)
- III. Residence (citizenship) of Principal Parties.** This section of the JS 44 is to be completed if diversity of citizenship was indicated above. Mark this section for each principal party.
- IV. Nature of Suit.** Place an "X" in the appropriate box. If there are multiple nature of suit codes associated with the case, pick the nature of suit code that is most applicable. Click here for: [Nature of Suit Code Descriptions](#).
- V. Origin.** Place an "X" in one of the seven boxes.
- Original Proceedings. (1) Cases which originate in the United States district courts.
- Removed from State Court. (2) Proceedings initiated in state courts may be removed to the district courts under Title 28 U.S.C., Section 1441.
- Remanded from Appellate Court. (3) Check this box for cases remanded to the district court for further action. Use the date of remand as the filing date.
- Reinstated or Reopened. (4) Check this box for cases reinstated or reopened in the district court. Use the reopening date as the filing date.
- Transferred from Another District. (5) For cases transferred under Title 28 U.S.C. Section 1404(a). Do not use this for within district transfers or multidistrict litigation transfers.
- Multidistrict Litigation – Transfer. (6) Check this box when a multidistrict case is transferred into the district under authority of Title 28 U.S.C. Section 1407.
- Multidistrict Litigation – Direct File. (8) Check this box when a multidistrict case is filed in the same district as the Master MDL docket. **PLEASE NOTE THAT THERE IS NOT AN ORIGIN CODE 7.** Origin Code 7 was used for historical records and is no longer relevant due to changes in statute.
- VI. Cause of Action.** Report the civil statute directly related to the cause of action and give a brief description of the cause. **Do not cite jurisdictional statutes unless diversity.** Example: U.S. Civil Statute: 47 USC 553 Brief Description: Unauthorized reception of cable service.
- VII. Requested in Complaint.** Class Action. Place an "X" in this box if you are filing a class action under Rule 23, F.R.Cv.P.
- Demand. In this space enter the actual dollar amount being demanded or indicate other demand, such as a preliminary injunction.
- Jury Demand. Check the appropriate box to indicate whether or not a jury is being demanded.
- VIII. Related Cases.** This section of the JS 44 is used to reference related pending cases, if any. If there are related pending cases, insert the docket numbers and the corresponding judge names for such cases.

Date and Attorney Signature. Date and sign the civil cover sheet.